

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST

COMPLAINANT,

v.

APS EAST COAST, INC.

RESPONDENT.

**RESPONDENT’S RESPONSE TO COMPLAINANTS’
EMERGENCY MOTION FOR EXTENSION OF TIME**

Respondent APS East Coast, Inc. (“Respondent”) hereby responds to Complainants’
Emergency Motion for Extension of Time.

Respondent would normally join in a request from opposing counsel for a reasonable
extension of time as a matter course and comity. In this instance, however, we are concerned
with the impact of the requested extension and therefore cannot join it.

The Complaint in this matter concerns actions taken by Respondent in late 2022 and early
2023, and presumably Complainants’ brief will address those issues. Accordingly, the recent
updates to Respondents’ tariff do not appear significantly material to the issues at hand. Further,
the recent changes to Respondent’s tariff were made by Respondent as an act of good faith to

satisfy an April 10, 2024 proposal by Complainants in connection with attempted settlement negotiations.

Respondent would still not oppose the motion except for concerns with the practical impact of the requested extension. Complainants' proposed deadline would have the effect of shortening Respondent's response time from four weeks to three and a half weeks due to the upcoming July 4th holiday, which is on a Thursday this year. Further, it would cause a conflict with Respondent's counsel's previously scheduled travel to the west coast to visit family in connection with the upcoming birth of counsel's first child. Those travel plans were tailored to accommodate the current briefing schedule set out in the March 4, 2024 Revised Scheduling Order.

Accordingly, while Respondent cannot not join the motion, we would not oppose the motion if the revised briefing schedule were to permit Respondent's Brief to be due on July 19, 2024.

Dated: May 30, 2024

Respectfully Submitted,

By: /s/ Peter F. Black

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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2. Hon. Alex M. Chintella - *Administrative Law Judge*
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Dated: May 30, 2024

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